

PROPOSED  
SENATE AMENDMENTS TO S.B. 1667  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-349, Arizona Revised Statutes, is amended to  
3 read:

4 8-349. Destruction of juvenile records; electronic research  
5 records; definition

6 A. A person who is at least eighteen years of age, ~~and~~ who has been  
7 adjudicated delinquent or incorrigible **AND WHO IS NOT SUBJECT TO A**  
8 **LIFETIME INJUNCTION ISSUED PURSUANT TO SECTION 13-719** may apply for  
9 destruction of the person's juvenile court and department of juvenile  
10 corrections records if the records involve an adjudication for an offense  
11 other than an offense listed in section 13-501, subsection A or B or title  
12 28, chapter 4.

13 B. The person shall attest to all of the following in the  
14 application:

15 1. The person is at least eighteen years of age.

16 2. The person has not been convicted of a felony offense or  
17 adjudicated delinquent for an offense that would be an offense listed in  
18 section 13-501, subsection A or B or title 28, chapter 4.

19 3. A criminal charge is not pending.

20 4. The person has completed all of the terms and conditions of  
21 court-ordered probation or been discharged from the department of juvenile  
22 corrections pursuant to section 41-2820 on successful completion of the  
23 individual treatment plan.

24 5. All restitution is paid in full.

25 6. The person is not under the jurisdiction of the juvenile court  
26 or the department of juvenile corrections.

27 7. The person is not currently required to register pursuant to  
28 section 13-3821.

1       8. The person has either paid all fines in full or has requested  
2 the court to modify the outstanding fines pursuant to subsection K of this  
3 section.

4       9. THE PERSON IS NOT SUBJECT TO A LIFETIME INJUNCTION ISSUED  
5 PURSUANT TO SECTION 13-719.

6       C. The juvenile court may order the destruction of records under  
7 subsection A of this section if the court finds all of the following:

8       1. The person is at least eighteen years of age.

9       2. The person has not been convicted of a felony offense.

10      3. A criminal charge is not pending.

11      4. The person was not adjudicated for an offense listed in section  
12 13-501, subsection A or B or title 28, chapter 4.

13      5. The person successfully completed the terms and conditions of  
14 probation or was discharged from the department of juvenile corrections  
15 pursuant to section 41-2820 on successful completion of the individual  
16 treatment plan.

17      6. All restitution is paid in full.

18      7. All fines are either paid in full or have been modified pursuant  
19 to subsection K of this section.

20      8. The person is not under the jurisdiction of the juvenile court  
21 or the department of juvenile corrections.

22      9. The person is not currently required to register pursuant to  
23 section 13-3821.

24      10. THE PERSON IS NOT SUBJECT TO A LIFETIME INJUNCTION ISSUED  
25 PURSUANT TO SECTION 13-719.

26      D. A person who ~~[IS NOT SUBJECT TO A LIFETIME INJUNCTION ISSUED~~  
27 ~~PURSUANT TO SECTION 13-719 AND WHO]~~ is not eligible to have the person's  
28 records destroyed pursuant to subsection A of this section may apply to  
29 have the person's juvenile court and department of juvenile corrections  
30 records destroyed pursuant to subsection E of this section. The person  
31 shall attest to all of the following in an application:

32      1. The person is at least twenty-five years of age.

33      2. The person has not been convicted of a felony offense.

34      3. A criminal charge is not pending.

35      4. All restitution is paid in full.

36      5. The person has either paid all fines in full or has requested  
37 the court to modify the outstanding fines pursuant to subsection K of this  
38 section.

39      6. The person is not currently required to register pursuant to  
40 section 13-3821.

41      ~~[7. THE PERSON IS NOT SUBJECT TO A LIFETIME INJUNCTION ISSUED~~  
42 ~~PURSUANT TO SECTION 13-719.]~~

43      E. The juvenile court may order the destruction of records if the  
44 court finds that all of the following apply to a person who files an  
45 application pursuant to subsection D of this section:

46      1. The person is at least twenty-five years of age.

47      2. The person has not been convicted of a felony offense.

1           3. A criminal charge is not pending.

2           4. All restitution is paid in full.

3           5. All fines are either paid in full or have been modified pursuant  
4 to subsection K of this section.

5           6. The person is not currently required to register pursuant to  
6 section 13-3821.

7           7. The destruction of the records would further the rehabilitative  
8 process of the applicant.

9           ~~8. THE PERSON IS NOT SUBJECT TO A LIFETIME INJUNCTION ISSUED~~  
10 ~~PURSUANT TO SECTION 13-719.]~~

11           F. The juvenile court and the department of juvenile corrections  
12 may store any records for research purposes.

13           G. At the juvenile's disposition hearing, the court shall inform  
14 the juvenile, in writing, of the right to the destruction of the  
15 juvenile's court and department of juvenile corrections records.

16           H. The clerk of the court may not charge a filing fee for the  
17 application to destroy juvenile records.

18           I. The clerk of the court shall transmit a copy of an application  
19 submitted pursuant to this section to the county attorney in the county in  
20 which the referral was made.

21           J. The county attorney may file an objection to an application that  
22 is submitted pursuant to this section for the destruction of records.

23           K. On a showing of good cause, the court may modify any fine  
24 imposed by the court except for victim restitution.

25           L. The juvenile court may not consider outstanding fees,  
26 assessments and surcharges when determining whether to destroy the  
27 juvenile's court and department of juvenile corrections records.

28           M. The juvenile court, the clerk of the superior court and the  
29 juvenile probation department, either on order of the juvenile court after  
30 the person files an application with the court or on notification by the  
31 probation department, shall destroy the records that concern a referral or  
32 citation that did not result in an adjudication. Records that are  
33 eligible for destruction pursuant to this subsection shall be destroyed  
34 within ninety days after the person who was the subject of the referral or  
35 citation reaches eighteen years of age or when destruction is ordered by  
36 the court. The probation department shall send a copy of the notice to  
37 the department of public safety central state repository.

38           N. Within six months after receiving a notification from the  
39 superior court that a person's juvenile delinquency or incorrigibility  
40 records were destroyed, the department of child safety shall destroy all  
41 court, juvenile probation and department of juvenile corrections records  
42 that are in the department of child safety's possession and that were  
43 produced in the delinquency or incorrigibility matter.

44           O. The clerk of the court shall notify the department of public  
45 safety if a person's record is destroyed pursuant to this section.

46           P. For the purposes of this section, "successfully" means, in the  
47 discretion of the court, the person satisfied the conditions of probation.

1 <<Sec. 2. Section 13-719, Arizona Revised Statutes, is amended to  
2 read:

3 13-719. Lifetime injunction: offenses: registration:  
4 previously sentenced defendants

5 A. At the time of sentencing, on the request of the victim or the  
6 prosecutor, the superior court shall issue an injunction that prohibits  
7 the defendant from contacting the victim if the defendant is convicted of  
8 any of the following offenses, whether completed or preparatory:

9 1. A dangerous offense as defined in section 13-105 that is a  
10 felony.

11 2. A serious offense or violent or aggravated felony as defined in  
12 section 13-706.

13 3. A felony offense included in chapter 14 or 35.1 of this title.

14 4. A felony offense as set forth in section 13-1204, subsection B.

15 5. A felony offense as set forth in section 13-1424.

16 6. A felony offense as set forth in section 13-2923.

17 B. An injunction issued pursuant to subsection A of this section is  
18 effective immediately and shall be served on the defendant at the time of  
19 sentencing.

20 C. The court shall provide information to the department of public  
21 safety to register the injunction with the national crime information  
22 center and shall notify the victim of the injunction.

23 D. If the victim did not request an injunction at the time of  
24 sentencing pursuant to subsection A of this section or the sentencing  
25 occurred before September 24, 2022, the victim may submit a petition to  
26 the superior court requesting an injunction against a defendant who was  
27 sentenced for an offense listed in subsection A of this section, and the  
28 court may not charge a fee for filing the petition. A law enforcement  
29 agency shall serve an injunction issued pursuant to this subsection at no  
30 charge to the victim.

31 E. An injunction that is issued pursuant to this section does not  
32 expire and is valid for the defendant's natural lifetime unless any of the  
33 following occurs:

34 1. The defendant makes a showing to the court that either:

35 (a) The victim has died.

36 (b) The conviction has been dismissed, expunged or overturned or  
37 the defendant has been pardoned.

38 2. The victim submits a written request to the court for an early  
39 expiration. The court may hold a hearing to verify the victim's request  
40 to dismiss the injunction.

41 F. Notwithstanding any other law, a conviction that is designated a  
42 misdemeanor pursuant to section 13-604, set aside pursuant to section  
43 13-905 ~~[or]~~ ~~[.]~~ sealed pursuant to section 13-911 [OR DESTROYED PURSUANT  
44 TO SECTION 8-349] does not affect the validity of a lifetime injunction  
45 that is issued pursuant to this section and does not prohibit a victim  
46 from submitting a petition to the superior court requesting a lifetime  
47 injunction. >>

Senate Amendments to S.B. 1667

- 1
- 2 Enroll and engross to conform
- 3 Amend title to conform

SHAWNNA BOLICK

16670401.docx  
02/17/2026  
04:01 PM  
S: ZD/ci  
130UVXTOC